

Amendment No. 1 to SB0606

Crowe
Signature of Sponsor

AMEND Senate Bill No. 606

House Bill No. 495*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 68-11-304(a)(2)(A), is amended by deleting the subdivision and substituting:

(2)

(A) For records other than those involving workers' compensation cases:

(i) The party requesting the patient's medical records in paper format is responsible to the provider or the provider's third-party release of information provider for the reasonable costs of copying and mailing the patient's records. Such reasonable costs must not exceed:

(a) Twenty-five dollars (\$25.00) for paper copies of medical records five (5) pages or less in length;

(b) Fifty cents (50¢) per page for each page copied after the first five (5) pages;

(c) Twenty dollars (\$20.00) per printed film for producing radiology images in hard copy; and

(d) The actual cost of mailing;

(ii) If a party described in subdivision (a)(2)(A)(i) requests certification or notarization, then a certification or notary fee must be charged as a flat fee of twenty dollars (\$20.00);

(iii) The party requesting the patient's records in electronic format is responsible to the provider or the provider's third-party release of information provider for the following fees:

(a) The reasonable fees for fulfilling a patient's request for the patient's own records are governed by the Health Insurance Portability and Accountability Act (HIPAA) of 1996 (42 U.S.C. § 1320d et seq.), and the Health Information Technology for Economic and Clinical Health (HITECH) Act (42 U.S.C. § 201 et seq.), and those acts' implementing regulations, which must not exceed the cost of the following:

(1) Labor for copying the protected health information requested by the individual;

(2) Supplies for creating the paper copy, or electronic media if the individual requests that the electronic copy be provided on portable media; and

(3) Postage, when the individual has requested the copy, summary, or explanation be mailed; and

(b) For all other requesters, the total fees for electronic medical records provided via portable media, electronic mail, or medical record portal, must comply with the following:

(1) The fee for all electronic medical records must be a flat fee of ninety dollars (\$90.00);

(2) The fee for producing electronic copies of radiology images must be no more than twenty-five dollars (\$25.00) per request for CD, DVD, or USB, or fifteen dollars (\$15.00) per request for electronic files emailed or sent via medical record portal;

(3) If certification or notarization is requested, then a certification or notary fee must be charged as a flat fee of twenty dollars (\$20.00);

(4) Charges for copying paper records or faxing paper records are subject to the limits set in subdivision (a)(2)(A)(i); and

(5) The fees charged for reproducing records of patients involved in a claim or appeal of denial for social security disability benefits must be a flat fee of twenty dollars (\$20.00), only when the records are produced electronically;

(iv) Upon request, a person providing records pursuant to this section shall provide the records in electronic form unless the records are not kept in electronic form in the usual course of business;

(v) A third-party release of information provider of record copying and related services is subject to the fee limits contained in this section and shall not impose a charge or fee for such service in excess of such fee limits;

(vi) The fees charged for reproducing records of patients involved in a workers' compensation claim are as specified in § 50-6-204; and

(vii) A provider shall not charge a fee for copying or notarizing a medical record when requested by the department of health pursuant to a complaint, inspection, or survey as set forth in § 63-1-117.

SECTION 2. Tennessee Code Annotated, Section 68-11-304(d), is amended by deleting the subsection.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.